HUMAN RESOURCES	**U.S. Access Board**	

PROCEDURES FOR PROVIDING REASONABLE ACCOMMODATIONS FOR PREGNANCY, CHILDBIRTH AND RELATED MEDICAL CONDITIONS

APPROVAL DATE:	November 10, 2026
VERSION:	1.0

1. PURPOSE

This policy establishes the Access Board's procedures for providing reasonable accommodations for qualified employees and applicants with limitations related to pregnancy, childbirth, or related medical conditions, as required by the Pregnant Workers Fairness Act (PWFA), 42 U.S.C. § 2000gg, *et seq*. Note that accommodations related to pregnancy, childbirth, or related medical conditions may also be available under Title VII of the Civil Rights Act of 1964, as amended, see 42 U.S.C. §§ 2000e(k), 2000e-16, and the Rehabilitation Act, 29 U.S.C. 794, though they will most often be processed under the PWFA.

2. APPLICABILITY

This policy applies to all Access Board employees, including public Board members, and to all applicants for employment with the Access Board.

3. AUTHORITIES

- Pregnant Workers Fairness Act (PWFA), 42 U.S.C. § 2000gg, *et seq.*
- EEOC Regulations Implementing the PWFA, 29 C.F.R. Part 1636

4. DEFINITIONS

- Employee: means a career employee of the Access board and a public member of the Board who is a Special Government Employee.
- Essential Functions: has the same meaning under the PWFA as under the Rehabilitation Act with respect to individuals with disabilities.
- Qualified Employee: with respect to an employee with a known limitation under the PWFA means: an employee who, with or without reasonable accommodation:

  1) can perform the essential functions of the employment position, or where leave is the reasonable accommodation provided, is reasonably expected to be able to perform the essential functions, with or without a reasonable accommodation, at the end of the leave; or

  2) where the employee cannot perform one or more essential functions if (a) any inability to perform an essential function(s) is for a temporary period, (i.e., lasting for a limited time); (b) the essential function(s) could be performed in the near future, as determined on a case-

by-case basis; and (3) the inability to perform the essential function(s) can be reasonably accommodated.

- Reasonable Accommodation: may include, but is not limited to, those actions listed in the Access Board's Procedures for Providing Reasonable Accommodations under the Rehabilitation Act but may also include actions such as temporary suspension of the requirement to perform an essential function and accommodations related to lactation, that are not required under the Rehabilitation Act.
- Undue Hardship: as a limitation on the obligation to provide a reasonable accommodation for pregnancy, childbirth, or related medical conditions means significant difficulty or expense. The definition of "undue hardship" under the PWFA considers the same basic factors that are relevant when determining whether an accommodation is an undue hardship under the Rehabilitation Act.

5. POLICY

5.1. General

It is the policy of the Access Board to provide reasonable accommodations for employees or applicants with limitations related to, affected by, or arising from pregnancy, childbirth, or related medical conditions, unless doing so would result in an undue hardship. The Access Board will not take any adverse action against employees or applicants who use request a reasonable accommodation for known limitations of their pregnancy, childbirth, or related medical conditions.

5.2. Procedures

Request for reasonable accommodations for an employee's or applicant's known limitations related to, arising from, or affected by pregnancy, childbirth, or related medical conditions are processed in a manner consistent with the procedures for reasonable accommodations related to a disability under the Access Board's Reasonable Accommodation Procedures. Variations from those procedures are warranted only to the extent that the types of accommodations required for a disability may differ from those for pregnancy, childbirth, or related medical conditions. For example, accommodations requiring the suspension of the requirement to perform essential functions are not required under the Rehabilitation Act but may be required under the PWFA. Pursuant to the procedures for reasonable accommodations related to disability, supervisors generally will process and make determinations on reasonable accommodation requests for employees, and the Chief of Staff will process and make determinations on requests from applicants. The Chair of the Board will be the decision-maker for any request from the Executive Director or from a Public Board member who is a special government employee.

6. APPROVALS

This policy is effective upon signature by the Executive Director and the Chief of Staff and remains in effect until rescinded, superseded, or reissued.

Drucilla Gordon
Chief of Staff

DRUCILLA GORDON
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Date: 2026.11.10 13:03:42 -05'00'

Sachin Pavithran
Executive Director

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7. REVISION HISTORY

The "Revision History" table below should be used to capture revisions or updates to this Religious Accommodation Policy. All columns are mandatory.

Date	Revision Summary	Version Number	Author/Owner Name